

of requests” (note 4/12/2023, p. 2);

c. “the request for access to the documents was therefore not received by the Data Protection Officer, who was unable to respond” (note 4/12/2023, p. 2);

d. “the Company has always been willing to provide the requested documentation, but the requests were not properly received” (note 4/12/2023, p. 3);

e. “the Company has taken steps to ensure that such requests are properly received in the future” (note 4/12/2023, p. 3).

3. Considerations of the Authority.

The Authority, having examined the documentation and the observations made by the Company, finds that:

a. the Company did not adequately respond to the requests for access made by the complainant, in violation of Articles 12 and 15 of the Regulation;

b. the failure to respond to the requests constitutes a breach of the complainant's rights under the Regulation;

c. the Company's claims regarding the non-receipt of the requests do not absolve it from its obligations under the Regulation.

4. Conclusion and measures.

In light of the above, the Authority decides to:

a. order the Company to provide the complainant with access to the requested documentation without further delay;

b. impose a fine on the Company for the failure to comply with the obligations set forth in the Regulation, in accordance with Article 83 of the Regulation.

This decision is communicated to the parties involved and will be published in accordance with the provisions of the Regulation.

Rome, 24 April 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

[Signature]

Prof. Pasquale Stanzione

President

of requests” (note cited, p. 2);

c. On March 28, 2022, “via PEC, the claimant sent, for the first time, the same request for access to the RPD, which promptly and extensively activated the competent Offices of the Company, holders of the documentation of interest to the claimant” (note cited, p. 2);

d. “In fact [...] the documentation was sent by the Human Resources Department on September 19, 2022, with no awareness in GSE that [the claimant] had in the meantime [...] filed a complaint” with the Authority (note cited, p. 2);

e. The information contained in the “personal file for performance evaluation for the years 2019 and 2020 [...] was already known to the employee,” considering that the same “in the context of the [feedback] interview, becomes aware of the evaluations of their Manager” (note cited, p. 3);

f. The Company has conducted training sessions on data protection aimed at employees and in July 2023 adopted an “Internal communication plan to continuously raise awareness/train the corporate population on GDPR issues” (note cited, p. 6);

g. “It is deemed necessary to exclude [...] any malicious intent regarding the delay in response, as well as any negligent behavior of the data controller in this case, with GSE [...] paying the utmost attention to the protection of data and the rights of its data subjects” (note cited, p. 6).

In this regard, it is noted that, although among the duties of the Data Protection Officer are those of providing advice to the controller and acting as a contact point for the Supervisory Authority (art. 39 of the Regulation), it seems inappropriate for the same to directly represent the controller or the data processor in proceedings before the Authority for the adoption of corrective and sanctioning measures referred to in articles 58, par. 2 and 83 of the Regulation, by signing defensive briefs or receiving a

mandate to represent them in personal hearings, considering the need to maintain an adequate separation between, on one side, the obligations of the data controller/data processor and, on the other side, the obligations and duties of the data protection officer as established by the Regulation.

3. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.

3.1. Outcome of the investigation. Violation of articles 12 and 15 of the Regulation.

As a result of the examination of the statements made to the Authority during the proceedings as well as the documentation acquired, it appears that the Company, as the controller, has carried out certain processing operations related to the claimant that are not compliant with the regulations on the protection of personal data.

In this regard, it is highlighted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Authority, falsely declares or certifies news or circumstances or produces false acts or documents is liable under art. 168 of the Code "Falsehood in declarations to the Authority and interruption of the execution of the tasks or the exercise of the powers of the Authority."

In substance, it emerged that the Company did not respond to the request to exercise the right of access to certain personal data processed in the context of the employment relationship (no longer in effect as of June 20, 2021), submitted by the claimant on October 27, 2021, to the PEC address of the Company and to the email address of the Human Resources Director.

The request, reiterated on December 6, 2021, via PEC and Peo to the same recipients of the first request and the then CEO of the Company, concerned "in light of the Privacy regulations regarding personal data [...] a copy of the personal file for performance evaluation relating to the years 2019 and 2020" (see Annex 1 to the complaint).

On March 28, 2022, having received no response, the claimant sent to the Data Protection Officer of the Company another request containing the same content as the previous ones (Annex 3 to the complaint), recalling the two requests that remained unanswered and suggesting the submission of a "formal complaint to the Privacy Authority for reporting the violation."

To this request, on April 21, 2022, a merely interlocutory response was provided by the office of the Data Protection Officer ("the competent HR functions of GSE have taken charge of the request for access to the documents and will provide you with a specific response from a mailbox of the same function").

On September 14, 2022, with a note sent again to the Data Protection Officer of the Company, the interested party represented that they had sent a "formal request [to the Authority] for the violation," having received no response on the merits, a few days after the "taking charge" of their request (see Annex 4 defensive briefs 12/4/2023).

Only after receiving this further communication, on September 19, 2022, did the Company provide the claimant with the requested information (Annex 2, cited defensive briefs).

According to art. 15 of the Regulation "The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, to obtain access to the personal data." Regarding the methods by which the controller must respond to the data subject, the same article specifies that "The data controller provides a copy of the personal data being processed."

Furthermore, Article 12 clarifies that the response to requests for the exercise of rights provided by the Regulation (including the right of access) must be provided "without undue delay and, in any case, no later than one month from the receipt of the request itself. This period may be extended by two months, if necessary, taking into account the complexity and number of requests. The data controller informs the data subject of such extension, and the reasons for the delay, within one month from the receipt of the request. [...]. If the data controller does not comply with the request of the data subject, the data controller informs the data subject without delay, and no later than one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedy."

In light of the aforementioned provisions, the Company has therefore failed to provide the data subject, as a former employee, with a response to the multiple requests for a copy of the personal performance

evaluation file relating to the years 2019 and 2020, and transmitted the information only after learning that the complainant had lodged a complaint with the Supervisory Authority, albeit before the initiation of a procedure by the latter, approximately eleven months after the first request, in violation of Articles 12 and 15 of the Regulation.

This is despite the fact that the subject of the request was specific and expressly defined within the scope of what is provided for by the "Privacy legislation regarding personal data." Article 15, then, in paragraph 3, provides that "the data controller shall provide a copy of the personal data undergoing processing," without prejudice to the non-overlapping nature between access to personal data and access to documents containing the data.

The fact that the request of 27/10/2021 and the reminder of 6/12/2021 were not conveyed to the Company "to the email address, nor to the PEC of the DPO of GSE, established for such types of requests" (see defense memoranda, p. 2) does not absolve the Company of responsibility, both because it is not evidenced that the complainant was informed that access requests should be directed to the Data Protection Officer, and because the response of September 19, 2022, was provided precisely by the recipient of the first two access requests (the Human Resources Manager of the Company), who is therefore competent in relation to this type of requests.

Finally, it is noted that the Guidelines 01/2022 on data subject rights - Right of access, EDPB, of March 28, 2023, clarified that the controller cannot require a specific format for requests to exercise the right of access nor, in principle, specific requirements that data subjects must observe when choosing a communication channel through which they contact the data controller (see point 52).

The reasoning provided by the Company during the proceedings before the Authority to explain the lack of response to the requests of the data subject (namely the existence of "a mere IT misunderstanding," without indicating, in concrete terms, the specific elements that would have caused the "misunderstanding") is not sufficient to negate the obligation imposed on the data controller to respond to requests for the exercise of rights, implementing measures, including organizational ones, aimed at facilitating their submission (see Article 12, paragraph 2 of the Regulation).

Regarding the content of the request made by the complainant, it is observed that the request for access to personal data can indeed be made even in relation to data already in the possession of the data subject or already delivered to them or otherwise known by the data subject. Article 15 of the Regulation does not impose any limitation on the information concerning the data subject that may be subject to access, and the Regulation expressly provides for the possibility that the data subject may submit multiple access requests (subject to the possibility for the data controller, in the case of "excessive requests, particularly due to their repetitive nature," to charge a reasonable fee; Article 12, paragraph 5, of the Regulation; regarding the interpretation of the provisions of the Regulation referred to here, see the aforementioned Guidelines 01/2022 on data subject rights - Right of access).

This reconstruction is confirmed by the case law, according to which the right of access to one's personal data, even within the employment relationship, "cannot be understood, in a restrictive sense, as merely the right to know any new and additional data compared to those already within the knowledge and, therefore, in the possession of the same data subject regarding the processing of their own data, since the purpose of the norm [that attributes the related right] is to guarantee, in protection of the dignity and privacy of the data subject, the verification over time of the occurrence of the insertion, permanence or removal of data, regardless of whether such events had already been brought to the knowledge of the data subject through other means" (see Court of Cassation 14/12/2018, no. 32533).

The Company, therefore, in the terms described above, has not complied with the obligation to provide a response to the data subject following the exercise of the rights provided by the Regulation - in this case, the right of access pursuant to Article 15 - within the terms and in the manner prescribed by Article 12 of the Regulation.

4. Conclusions: declaration of unlawfulness of

****Processing. Corrective measures pursuant to Art. 58, par. 2, Regulation.****

For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the closure of the present procedure, as none of the cases provided for by Art. 11 of the Garante Regulation No. 1/2019 apply.

The processing of personal data carried out by the Company, specifically the failure to respond to the requests for access to personal data submitted by the complainant within the time limits set by the law, is indeed unlawful, as stated above, in relation to Arts. 12 and 15 of the Regulation.

The violation established in the terms of the reasoning cannot be considered "minor," taking into account the nature of the violation concerning the exercise of the rights of the data subject, the seriousness and duration of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

The Authority also took into account the average level of severity of the violation in light of all relevant factors in the specific case, particularly the nature, severity, and duration of the violation, considering the nature, subject, or purpose of the processing in question as well as the number of affected data subjects and the level of harm suffered by them.

The Authority also considered the criteria related to the intentional or negligent nature of the violation and the categories of personal data affected by the violation, as well as the manner in which the supervisory authority became aware of the violation (see Art. 83, par. 2 and Recital 148 of the Regulation).

Therefore, in light of the corrective powers conferred by Art. 58, par. 2 of the Regulation, an administrative pecuniary sanction is imposed pursuant to Art. 83 of the Regulation, commensurate with the circumstances of the specific case (Art. 58, par. 2, lett. i) Regulation).

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Arts. 58, par. 2, lett. i), and 83 of the Regulation; Art. 166, comma 7, of the Code).

As a result of the procedure, it is found that Gestore Dei Servizi Energetici - Gse S.p.A. has violated Arts. 12 and 15 of the Regulation. For the violation of the aforementioned provisions, the application of the administrative pecuniary sanction provided for by Art. 83, par. 5, lett. b) of the Regulation is foreseen, through the adoption of an injunction order (Art. 18, Law 24.11.1981, No. 689).

It is deemed necessary to apply paragraph 3 of Art. 83 of the Regulation, which states that "If, in relation to the same processing or related processing, a data controller [...] violates, intentionally or negligently, various provisions of this regulation, the total amount of the administrative pecuniary sanction shall not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Art. 83, par. 5.

With reference to the elements listed in Art. 83, par. 2 of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must "in any case [be] effective, proportionate and dissuasive" (Art. 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

a) in relation to the nature of the violation, it concerned cases punished more severely under Art. 83, par. 5 of the Regulation (rights of the data subjects); regarding the seriousness of the violation, the nature of the processing concerning the exercise of the right of access to one's personal data was taken into account; with regard to the duration of the violation, the extensive duration of the violation itself (about one year) was considered relevant;

b) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the data controller, the negligent conduct of the Company and its degree of responsibility, which did

not comply with the data protection regulations concerning multiple provisions, were taken into account;

c) in favor of the Company, consideration was given to its cooperation with the supervisory authority, the late submission of a response to the access request after learning of the filing of a complaint with the Garante but before the initiation of a procedure by the latter, and the fact that the established violation only concerned the complainant.

It is also considered that the economic conditions of the offender, determined based on the revenues obtained by the Company with reference to the ordinary financial statements for the year 2022, are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Art. 83, par. 1, of the Regulation). Lastly, the amount of sanctions imposed in similar cases is taken into account.

In light of the above-mentioned elements and the evaluations made, it is deemed appropriate, in this case, to impose on Gestore Dei Servizi Energetici - Gse S.p.A. the administrative sanction of payment of an amount equal to €30,000 (thirty thousand).

In this context, it is also considered, in light of the type of violations identified that have concerned the exercise of the rights of the interested party, that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the Guarantor's website should proceed. It is also deemed that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

notes the unlawfulness of the processing carried out by Gestore Dei Servizi Energetici - Gse S.p.A., represented by its legal representative, with registered office at Viale Maresciallo Pilsudsky, 92, Rome, Tax Code 05754381001, pursuant to Article 143 of the Code, for the violation of Articles 12, 15, and 17 of the Regulation;

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, Gestore Dei Servizi Energetici - Gse S.p.A., to pay the sum of €30,000 (thirty thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS

therefore the same Company to pay the aforementioned sum of €30,000 (thirty thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is reminded that the infringer retains the right to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term provided for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code);

DISPOSES

the publication of this provision on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, and considers that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with an application filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, April 24, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei